

The court compels this further production and/or further verified responses to the requests for production be completed and served within 30 days of the service of this order.

As to the issue of monetary sanctions:

Both C.C.P. §2030.300(d) [interrogatories] and §2030.320(b) [requests for production] mandate sanctions against the losing party on a motion to compel further responses/compliance, unless the court finds that this party acted with substantial justification or that other circumstances weigh against the imposition of the sanctions.

The court finds that SAUVAGEAU and his counsel have not provided a reasonable excuse for the considerable delay that has already occurred in providing the responses and production at issue in this motion, and thus finds that joint and several sanctions against both are justified.

The court also finds that the amount of sanctions sought by Plaintiffs' counsel exceeds the amount the court finds reasonable, particularly regarding the amount of time claimed to have been spent on the motion papers and the time estimated to be incurred thereafter. It therefore imposes sanctions in the total amount of \$5400.00 (12 hours x 450.00), jointly and severally against DANIEL WAYNE SAUVAGEAU and his counsel Mark J. Mulkerin of the law firm Burke, Williams & Sorensen, LLP, payable to Plaintiff's counsel within 30 days of the service of this order.

MARK LEMLEY vs. DARABARA SINGH; ET AL.
Case No. CU25-09863

Application for Determination of Good Faith Settlement

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is to grant the unopposed application for good faith settlement.

STEPHANIE NELSON vs. FORD MOTOR COMPANY
Case No. CU26-02728

Demurrer and Motion to Strike

TENTATIVE RULING

Defendant FORD MOTOR COMPANY demurs to the causes of action for violation of the Consumer Legal Remedies Act (the “CLRA”), breach of implied warranty, fraud, and unfair competition within Plaintiff STEPHANIE NELSON’s complaint. The complaint concerns an alleged defective 6F35 transmission in Plaintiff’s 2016 Ford Fusion (the “Vehicle”). Plaintiff alleges that Defendant fraudulently concealed the existence of the defect at the time she purchased the Vehicle.

Defendant simultaneously moves to strike the complaint’s prayers for punitive damages, attorneys’ fees, and injunctive relief.

Notice of Tentative Ruling. Defendant’s notices of demurrer and motion do not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Defendant is advised to observe local rules going forward.

Statutes of Limitations. The statutes of limitations for fraudulent inducement and CLRA claims are both three years. (Code Civ. Proc., § 388, subd. (d) [fraud]; Civ. Code, § 1783 [CLRA].) The statutes of limitations for an implied warranty claim under the Uniform Commercial Code and the unfair competition law are four years. (Cal. U. Com. Code § 2725 [implied warranty]; Bus. & Prof. Code, § 17208 [UCL].) A demurrer based on the statute of limitations must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCourt* (2001) 91 Cal.App.4th 875, 881.) It is not sufficient that the claim only might be barred. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

Plaintiff alleges that the Vehicle was purchased on December 13, 2017. (Complaint at ¶ 5.) The complaint was filed on March 20, 2026. The challenged causes of action appear time-barred on the face of the complaint. It is the duty of a plaintiff who wishes to utilize tolling doctrines to allege facts supporting application of those doctrines. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) Plaintiff does not allege facts demonstrating that the doctrines of delayed discovery, fraudulent concealment, or equitable tolling apply in this case.

The delayed discovery doctrine requires facts showing when the plaintiff discovered or reasonably should have discovered his claim. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) The complaint contains only an overly generic statement that Plaintiff filed suit within two years of when she discovered or should have discovered her claims. (Complaint at ¶ 152.)

Fraudulent concealment as a tolling doctrine does not assist Plaintiff, for similar reasons. The complaint alleges insufficient facts showing in what way Defendant’s fraudulent conduct caused Plaintiff’s claims to grow stale. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1192.) Defendant must have done something more than simply continue the nondisclosure that is the basis for Plaintiff’s fraud cause of action. (*Trantafello v. Medical Center of Tarzana* (1986) 182 Cal.App.3d 315, 321.) Though the complaint contains allegations that Defendant instructed its dealers and

technicians to tell consumers there was nothing wrong with 6F35 transmissions and that the symptoms of the defect were “normal driving characteristics” there are no allegations that Plaintiff was told this, as there are no particular allegations of her interactions with Defendant’s dealers and/or technicians. (Complaint at, e.g., ¶¶ 135, 152.) It is also important to know when Plaintiff realized she had claims against Defendant for purposes of the fraudulent concealment doctrine, a “close cousin” of the delayed discovery doctrine, because the fraudulent concealment doctrine will not assist a plaintiff on notice of a potential claim. (*MGA Entertainment, Inc. v. Mattel, Inc.* (2019) 41 Cal.App.5th 554, 565.)

Equitable tolling has no application here. The elements of equitable tolling are timely notice to the defendant, lack of prejudice to the defendant, and reasonable and good faith conduct by the plaintiff. (*Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710, 726.) It is not required that a plaintiff pursue an alternative legal remedy. (*Ibid.*) However, pursuit of an alternative legal remedy is the most common basis for application of equitable tolling and is the basis on which Plaintiff founds her equitable tolling argument here. (Complaint at ¶ 157.) However, the complaint states that Plaintiff first brought the instant claims against Defendant in federal court in March 2024. (*Ibid.*) This is well after the three- and four-year statutes of limitations applicable to her claims expired. Plaintiff cannot toll statutes that were already expired when she began federal court litigation against Defendant.

A plaintiff who fails to allege facts supporting application of tolling doctrines should normally be given leave to do so. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.) The court finds that leave to amend is appropriate here.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Plaintiff’s challenged causes of action all fail due to time bars. Plaintiff does not contend that her remaining causes of action could support punitive damages or injunctive relief. However, Plaintiff’s request for attorneys’ fees is based on Code of Civil Procedure section 1021.5, not any of the challenged causes of action. (Complaint at ¶ 253.)

Conclusion. Defendant’s demurrer is sustained with leave to amend. Defendant’s motion to strike is granted with leave to amend as follows: the complaint’s requests for punitive damages and injunctive relief are ordered struck.
